NATIONAL COMPANY LAW TRIBUNAL
AMARAVATI BENCH
(Video Conference)

PRESENT: JUSTICE TELAPROLU RAJANI – MEMBER JUDICIAL
ATTENDANCE-CUM-ORDER SHEET OF THE HEARING HELD ON 21.10.2022 AT 10.30 AM

TC/CP. Nos.	CA/IA No.	Section/ Rule	Name of Parties
CA(A) Merger & Amalgamation/7/230/AMR/2022		**230**	**Deepak Nexgen Foods & Feeds Private Limited (Transferor Company) and Deepak Nexgen Feeds Private Limited (Transferee Company)**

Counsel for Petitioner(s):

Name of the Counsel(s)	Designation	E-mail & Telephone No.	Signature

Counsel for Respondent(s):

Name of the Counsel(s)	Designation	E-mail & Telephone No.	Signature

ORDER

Ms.Anita Dugar, Advocate for the Petitioner is present. CA(A) Merger & Amalgamation/7/230/AMR/2022 is allowed, vide separate orders.

SD/-
JUSTICE TELAPROLU RAJANI
MEMBER JUDICIAL

BEFORE THE NATIONAL COMPANY LAW TRIBUNAL, AMARAVATI BENCH, AT MANGALAGIRI

CA (CAA) No.7/230/AMR/2022

In the matter of the Companies Act, 2013
AND
In the matter of Section 230 to 232 of the Companies Act, 2013
AND
In the matter of Scheme of Amalgamation

BETWEEN:

M/s. Deepak Nexgen Foods & Feeds Private Limited,
Having registered office at #40-2-29,
Siddhartha Apartments, Siddhartha Nagar,
Mogalrajpuram, Vijayawada, Krishna Distirct-520010.

…. Applicant/Transferor Company

AND

M/s. Deepak Nexgen Feeds Private Limited,
Having registered office at #40-2-29,
Siddhartha Apartments, Siddhartha Nagar,
Mogalrajpuram, Vijayawada,
Krishna -520010.

… Applicant/Transferee Company

Date of Order Pronounced on: 21.10.2022

Coram:

Justice Telaprolu Rajani, Member Judicial.

For the Applicant :Mr. Prashant Kumar Jain & Ms. Anitha Baid, Advocates

Per: Justice Telaprolu Rajani, Member Judicial.

ORDER

1. The present Company Application filed under Sections 230 to 232 of the Companies Act, 2013 read with the Companies (Compromises, Arrangements and Amalgamation) Rules, 2016 by the Applicant Company inter alia seeking an order to dispense with convening the meeting of the Equity Shareholders, Secured Creditors, Unsecured Creditors and Trade Creditors of the Applicant Companies for consideration of the Scheme of Amalgamation ("Scheme" for short) between the Applicant Companies, their respective shareholders and creditors as envisaged under the Scheme.

2. The Registered Office of the Applicant Companies are situated in the State of Andhra Pradesh and therefore, it is within the jurisdiction of this Tribunal.

3. Brief facts leading to the filing of present case are as follows:

    a) M/s. Deepak Nexgen Foods & Feeds Private Limited, Applicant/Transferor Company was incorporated as a Private Limited Company on 24.08.2015. The Authorised Share Capital as on 31.03.2022 was Rs.22,66,00,000/- divided into 2,26,60,000 equity shares of Rs.10/- each. The issued, subscribed and paid-up equity share capital is Rs.22,66,00,000/- divided into 2,26,60,000 equity shares of

Rs.10/- each. The main objects of the Company are to engage in manufacture, contract manufacture, job works, research and contract research, development, trade, acquisition, storage and marketing of all types of feeds and foodstuffs, nutritive feeds, therapeutic feeds for veterinary use, for animals, marine animals, reptiles, fish, prawns, aves, mammals, insects and all types of living beings, with the exception of human beings, and to engage in the rearing, farming and reproduction, cloning and growth and development of such living beings for feed purposes etc.

b) M/s. Deepak Nexgen Feeds Private Limited, Applicant/Transferee Company was incorporated as a Private Limited Company on 17.06.2010. The Authorised Share Capital as on 31.03.2021 was Rs.24,60,00,000/- divided into 2,46,00,000 equity shares of Rs.10/- each. The issued, subscribed and paid-up equity share capital is Rs.14,50,00,000/- divided into 1,45,00,000 equity shares of Rs.10/- each. The main objects of the Company are to carry on the business to manufacture, establish, produce, process, protect, preserve, manage, store, dry, clean, commercialize, cure, cut, powder, freeze, prepare, treat, disinfect and to act as stockiest, representative, middleman, liasioner, consignor, collaborator, agent, broker, importer, exporter, buyer, seller, consultant, job worker, marketman or otherwise to deal in all

types of fish meals, fish products, fish feeds, animal products etc.

c) According to the Applicant Companies, the amalgamation of the Transferor Company with the Transferee Company would inter alia help in consolidation of operations of both the companies to achieve better synergies and reduce redundancy and reapplication of works and projects undertaken; greater integration, financial strength and flexibility for the Transferee Company, which will improve the financial position of the Transferee Company; greater efficiency in cash management of the Transferee Company and unfettered access to cash flow generated by the combined business which can be delayed more efficiently to fund growth opportunities, to further improve shareholder's value; improve organizational capability and leadership, arising from the pooling of human capital that has the diverse skills, talent and vast experience to compete successfully in a competitive industry; and the Transferor Company and Transferee Company are engaged in the similar line of business and intend to achieve synergies in economies of scale, unified control of operations and efficiency by consolidating the business operations of both the Transferor and the Transferee Company.

4. The Board of Directors of the Applicant /Transferee Company and Transferor Company in their respective Board Meetings held on 24.06.2022 have approved the Scheme of Amalgamation with appointed date as 01.04.2022, subject to the approval of their shareholders and creditors.

5. It is stated that no investigation or proceedings have been instituted or are pending in relation to the Applicant Companies.

6. The Applicant/Transferor Company has filed certificate of the Auditor stating that as on 25.07.2022 there are Twenty One (21) Equity Shareholders, together holding 2,26,60,000 equity shares and they have given their consent in the form of affidavits agreeing to the proposed Scheme.

7. The Applicant/Transferor Company has filed certificate of the Auditor stating that as on 25.07.2022 there are Two (2) Secured Creditors and have given their consent in the form of affidavit agreeing to the proposed Scheme.

8. The Applicant/Transferor Company has filed certificate of the Auditor stating that as on 25.07.2022 there is One (1) Unsecured Creditors, having a debt of Rs.2,85,82,008/- and has given its consent in the form of affidavit agreeing to the proposed Scheme.

9. The Applicant/Transferee Company has filed certificate of the Auditor stating that as on 25.07.2022 there are Twenty One (21)

Equity Shareholders, together holding 1,45,00,000 equity shares and they have given their consent in the form of affidavits agreeing to the proposed Scheme.

10. The Applicant/Transferee Company has filed certificate of the Auditor stating that as on 25.07.2022 there are Two (2) Secured Creditors and have given their consent in the form of affidavit agreeing to the proposed Scheme.

11. The Applicant/Transferee Company has filed certificate of the Auditor stating that as on 25.07.2022 there are Nine (9) Unsecured Creditors and have given their consent in the form of affidavit agreeing to the proposed Scheme.

12. Heard the submissions made in this regard by Mr. Prashant Kumar Jain, Advocate appearing for the Applicant Companies and perused the documents filed.

13. It is noted that all the shareholders of the Applicant Companies have given consent affidavits, agreeing to the proposed Scheme of Amalgamation. Hence the meeting of the Shareholders of the Applicant Companies can be dispensed with, in terms of Section 230(9) of the Act.

14. It is noted that Secured Creditors have given consent affidavit agreeing to the proposed Scheme of Amalgamation. Hence the meeting of the Secured Creditors of the Applicant/Transferee

Companies can be dispensed with, in terms of Section 230(9) of the Act.

15. It is noted that Unsecured Creditors have given consent affidavit agreeing to the proposed Scheme of Amalgamation. Hence the meeting of the Unsecured Creditors of the Applicant Companies can be dispensed with, in terms of Section 230(9) of the Act.

16. In compliance of sub section(5) of Section 230 of the Act and Rule 8 of the Companies (CAA) Rules, 2016, the applicant companies shall send notice under sub section (3) of Section 230 read with Rule 6 of the Rules with a copy of the Scheme, the explanatory statement and the disclosures mentioned in Rule 6 to (a) the Central Government through the Regional Director, South Eastern Region; (b) the Registrar of Companies, Andhra Pradesh; (c) the Income Tax Authorities; and (d) the Official Liquidator. The said notices be sent either by Registered Post or by Speed Post or by Hand Delivery at the Offices of the authorities as required by sub rule (2) of Rule 8 of the Rules. The aforesaid authorities, who desire to make any representation under sub section (5) of section 230 shall send the same to this Tribunal within a period of 30 (thirty) days from the date of receipt of such notice, failing which it shall be deemed that they have no representation to make on the proposed Scheme.

17. In the event of the Applicant Companies approaching this Tribunal seeking approval of the Scheme, it would be open for any person who is interested in the Scheme to put forth his/their contention(s) before the Tribunal. Hence ordered.

ORDER

The Company Application i.e., CA(CAA) No.7/230/AMR/2022 is allowed and disposed of accordingly.

Sd/-
JUSTICE TELAPROLU RAJANI
MEMBER JUDICIAL

Swamy Naidu